

22STCV38869 22STCV38869

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-09-24

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF46%2C09%2F24%2F2026

Source SHA-256: c7251f7b15e75cd80b69afcd59a711409d37745ea50d2bde2afd60e79a5befa2

Case Number: 22STCV38869 Hearing Date: September 24, 2026 Dept: F46

Dept. F-46

Hearing Date: September 24, 2026

Case Number: 22STCV38869

MOTION TO
CONSOLIDATE

Motion filed on June 25, 2026.

MOVING PARTY: Defendant Los Angeles County Metropolitan
Transportation Authority

RESPONDING PARTIES: Plaintiffs Oswaldo Sorto and Pamela Ann
Smith

NOTICE: OK.

RELIEF REQUESTED: Defendant Los Angeles County Metropolitan
Transportation Authority moves to consolidate Oswaldo Sorto v. Los Angeles
County Metropolitan Transportation Authority, et al., Case No. 22STCV38869, and
Pamela Ann Smith v. Los Angeles County Metropolitan Transportation Authority,
Case No. 23STCV10475, for all purposes, with Case No. 22STCV38869 designated as
the lead case.

RULING: Granted. The actions are consolidated for all
purposes. Case No. 22STCV38869 is designated as the lead case.

BACKGROUND

On December 14, 2022, Plaintiff Oswaldo Sorto (Sorto) filed Case No. 22STCV38869 (Sorto Action) against Defendants Los Angeles County Metropolitan Transportation Authority (LACMTA), Doe Driver, and Does 1 through 20. On April 7, 2023, Sorto filed the operative First Amended Complaint alleging causes of action for negligence and statutory liability.

On May 10, 2023, Plaintiff Pamela Ann Smith (Smith) filed Case No. 23STCV10475 (Smith Action) against LACMTA, erroneously sued as Los Angeles County Metropolitan Transit Authority, and Does 1 through 50.

On January 14, 2026, the parties filed a stipulation requesting that the Smith Action be related to and consolidated with the Sorto Action for all purposes and assigned to Department F-46.

On February 17, 2026, this Court denied the request to relate the actions, finding that the parties' stipulation did not establish materially changed circumstances from the prior determination that the actions were not related. This Court also denied consolidation based on the record and procedural posture then presented, without prejudice to a renewed noticed motion after the actions were related and assigned to the same department.

On June 25, 2026, Department 534 found the actions related, designated the Sorto Action as the lead case, and reassigned the Smith Action to Department F-46. The same day, LACMTA filed this motion. No opposition was filed.

DISCUSSION

"When actions involving a common question of law or fact are pending before the court ... it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." (Code Civ. Proc., § 1048, subd. (a).) The purpose of consolidation is to enhance trial court efficiency by avoiding unnecessary duplication of evidence and the danger of inconsistent adjudications. (*Todd-Stenberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 978-979.)

"There are two types of consolidation: a complete

consolidation resulting in a single action, and a consolidation of separate actions for trial. Under the former procedure, which may be utilized where the parties are identical and the causes could have been joined, the pleadings are regarded as merged, one set of findings is made, and one judgment is rendered. In a consolidation for trial, the pleadings, verdicts, findings and judgments are kept separate; the actions are simply tried together for the sake of convenience and judicial economy.” (Sanchez v. Superior Court (1988) 203 Cal.App.3d 1391, 1396.) “Consolidation under Code of Civil Procedure section 1048 is permissive, and it is for the trial court to determine whether the consolidation is for all purposes or for trial only.” (Hamilton v. Asbestos Corp., Ltd. (2000) 22 Cal.4th 1127, 1149.)

These actions arise from a motor vehicle collision.

Plaintiff Sorto alleges he was injured when a bus operated by Defendant LACMTA failed to stop and collided with his vehicle while he was stopped on westbound Adams Boulevard. (FAC ¶¶ 14-16.) Plaintiff Smith alleges she was injured by the negligent operation of a motor vehicle at Adams Boulevard and Grand Avenue. (Compl., MV-1, MV-2.) In support of the motion, LACMTA’s counsel, Albert De Blanc, Jr., declares that both actions arise from the same March 29, 2022 chain-reaction collision on westbound Adams Boulevard. (De Blanc Decl. ¶ 2.) He declares that an assault on the LACMTA bus operator caused the bus to contact the rear of Smith’s vehicle, which then contacted another vehicle that ultimately contacted the rear of Sorto’s vehicle. (De Blanc Decl. ¶ 3.) De Blanc further declares that consolidation will avoid duplicative discovery, motion practice, expert testimony, and trial preparation. (De Blanc Decl. ¶¶ 10-11.)

The parties stipulated that the actions arise from the same occurrence, involve the same or similar claims and substantially identical questions of law or fact, and are likely to require substantial duplication of judicial resources if heard separately. (De Blanc Decl. ¶ 7, Ex. A.) Although Sorto and Smith are different plaintiffs, all parties expressly agreed to consolidation for all purposes. (Ibid.)

In light of the moving papers, this Court finds that the Sorto Action and Smith Action involve common questions of law and fact. No opposition has been filed disputing LACMTA’s showing that the actions will involve overlapping evidence, discovery, expert testimony, and trial preparation.

Accordingly, this Court grants LACMTA's request for complete consolidation of the two actions.

CONCLUSION

LACMTA's Motion to Consolidate is GRANTED. Case Nos. 22STCV38869 and 23STCV10475 are consolidated for all purposes. Case No. 22STCV38869 is designated as the lead case. This order shall be filed in each action. Thereafter, all subsequent documents shall be filed only in the lead case. (Cal. Rules of Court, rule 3.350(c).)